

26NNCV04830 26NNCV04830

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26NNCV04830 Hearing Date: August 28, 2026 Dept: B

Hon. Victor Avila, Dept B

Petition to Approve Minor's Compromise

Hearing Date: 8/28/26

CASE NO.: 26NNCV04830

CASE NAME: Cohen v. San Marino Unified School District

Petitioner: Amie Cohen

Minor Claimant: Jacob Cohen

Ruling:

GRANT.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a premises liability action. On October 22, 2025, minor Jacob Cohen (Minor Claimant) fell from a swing at Huntington Middle School after a bolt on the swing snapped, causing a right humerus fracture.

On June 17, 2026, Minor Claimant filed a Complaint against San Marino Unified School District alleging premises liability. On July 6, 2026, Minor Claimant's mother Amie Cohen (Petitioner) filed the instant petition to approve compromise of disputed claim on his behalf.

The Court notes that there is a concurrent application filed by Petitioner for appointment as guardian ad litem of Minor Claimant.

LEGAL STANDARD

Court approval is required for all settlements of a minor's claim or that of a person lacking the capacity to make decisions. (Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372; see *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337.)

"[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests [I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (*Goldberg v. Superior Court* (1994) 23 Cal.App.4th 1378, 1382.)

A petition for court approval of a compromise or covenant not to sue under Code of Civil Procedure section 372 must comply with California Rules of Court Rules 7.950, 7.951, and 7.952. The petition must be verified by the petitioner and contain a full disclosure of all information that has "any bearing upon the reasonableness" of the compromise or the covenant. (Cal. Rules

of Court, rule 7.950.) The person compromising the claim on behalf of the minor or person who lacks capacity, and the represented person, must attend the hearing on compromise of the claim unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952(a).)

An order for deposit of funds of a minor or person lacking decision-making capacity and a petition for the withdrawal of such funds must comply with California Rules of Court Rules 7.953 and 7.954. (Cal. Rules of Court, rule 3.1384; see also Super. Ct. L.A. County, Local Rules, rules 4.115-4.118.)

DISCUSSION

Procedural Requirements

Petitioner has filed a Proposed Order with the petition. (*Scruton v. Korean Air Lines Co., Ltd.* (1995) 39 Cal.App.4th 1596, 1603-1605 [stating that a petition for court approval must comply with Cal. Rules of Court, rules 7.950, 7.950.5, 7.591 and 7.952].) Petitioner uses Judicial Council form MC-350 for the petition and presents the Court with a proposed order on form MC-351 approving compromise of the disputed claim.

The petition is thus procedurally proper.

Substantive Requirements

The petitions show that Minor Claimant Jacob Cohen settled with Defendant for total amount of \$100,000. (Pet., ¶ 10.) Of the \$100,000 allocated to Minor Claimant, \$0 will be used to pay medical expenses, \$25,000 will be used to pay attorney's fees, and \$814.30 will be used to pay non-medical expenses, leaving a balance of \$74,185.70. (Pet., ¶ 16.) Petitioners propose the net proceeds be paid or transferred to the Jacob Abel Cohen Supplemental Needs Trust established under Probate Code section 3604 for the benefit of the minor. (Pet., ¶ 18(b)(4).)

The Court finds the settlements are fair, reasonable and in the best interests of Minor Claimant. Further, the Court finds that the declaration of Richard J. Spencer,

Esq. is sufficient to support the request for attorney's fees in the amount of \$25,000 (representing 25 percent of the gross \$100,000 settlement). (Pet., Attachment 13a, Spencer Decl., ¶ 4.)

CONCLUSION

AND ORDER

Petitioner Amie

Cohen's petition to approve compromise of pending action on behalf of minor claimant Jacob Cohen is GRANTED.

MOVING PARTY

shall

provide notice.